

OCCUPATIONS CODE

TITLE 12. PRACTICES AND TRADES RELATED TO WATER, HEALTH, AND SAFETY

SUBTITLE B. PRACTICES RELATED TO HEALTH AND SAFETY

CHAPTER 1958. MOLD ASSESSORS AND REMEDIATORS

SUBCHAPTER A. GENERAL PROVISIONS

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see H.B. [1620](#) and S.B. [1255](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.001. DEFINITIONS. In this chapter:

(1) "Advisory board" means the Mold Assessment and Remediation Advisory Board.

Text of subdivision as added by Acts 2023, 88th Leg., R.S., Ch. 282
(S.B. [1213](#)), Sec. 1

(1-a) "Commission" means the Texas Commission of Licensing and Regulation.

Text of subdivision as added by Acts 2015, 84th Leg., R.S., Ch. 838
(S.B. [202](#)), Sec. 1.278

(1-a) "Department" means the Texas Department of Licensing and Regulation.

(2) "Executive director" means the executive director of the department.

(3) "License" means a license issued under this chapter.

(4) "Mold" means any living or dead fungi or related products or parts, including spores, hyphae, and mycotoxins.

(5) "Mold assessment" means:

(A) an inspection, investigation, or survey of a dwelling or other structure to provide the owner or occupant with information regarding the presence, identification, or evaluation of mold;

(B) the development of a mold management plan or remediation protocol; or

(C) the collection or analysis of a mold sample.

(6) "Mold remediation" means the removal, cleaning, sanitizing, demolition, or other treatment, including preventive activities, of mold or mold-contaminated matter that was not purposely grown at that location.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.292, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.278, eff. September 1, 2017.

Acts 2023, 88th Leg., R.S., Ch. 282 (S.B. [1213](#)), Sec. 1, eff. May 29, 2023.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. [1255](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.002. SCOPE OF AUTHORITY. (a) This chapter applies only to the regulation of mold-related activities that affect indoor air quality, including a mold-related activity performed by a third party for compensation at a property owned or operated by a governmental entity.

(b) This chapter does not apply to:

(1) the following activities when not conducted for the purpose of mold assessment or mold remediation:

(A) routine cleaning;

(B) the diagnosis, repair, cleaning, or replacement of plumbing, heating, ventilation, air conditioning, electrical, or air duct systems or appliances;

(C) commercial or residential real estate inspections; and

(D) the incidental discovery or emergency containment of potential mold contamination during the conduct or performance of services listed in this subsection;

(2) the repair, replacement, or cleaning of construction materials during the building phase of the construction of a structure;

(3) the standard performance of custodial activities for, preventive maintenance of, and the routine assessment of property owned or operated by a governmental entity; or

(4) a pest control inspection conducted by a person regulated under Chapter [1951](#).

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

SUBCHAPTER A-1. ADVISORY BOARD

Sec. 1958.031. ADVISORY BOARD MEMBERSHIP. (a) The Mold Assessment and Remediation Advisory Board consists of 11 members appointed by the presiding officer of the commission, with the approval of the commission, as follows:

(1) three members who are licensed and engage in mold assessment as consultants;

(2) three members who are licensed and engage in mold remediation as contractors;

(3) two members who are building contractors principally engaged in home construction and who are members of a statewide building trade association;

(4) one member who is a representative of the insurance industry;

(5) one member who is a representative of an accredited mold training provider; and

(6) one member who represents the public.

(b) Appointments to the advisory board shall be made without regard to the race, color, disability, sex, religion, age, or national origin of the appointee.

(c) Chapter [2110](#), Government Code, does not apply to the composition or duration of the advisory board or to the appointment of the advisory board's presiding officer.

Added by Acts 2023, 88th Leg., R.S., Ch. 282 (S.B. [1213](#)), Sec. 2, eff. May 29, 2023.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. [2075](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.032. TERMS; VACANCY. (a) Members of the advisory board serve staggered six-year terms, with the terms of three or four members expiring on February 1 of each odd-numbered year.

(b) If a vacancy occurs during a member's term, the presiding officer of the commission, with the approval of the commission, shall appoint a replacement who meets the qualifications for the vacant position to serve for the remainder of the term.

Added by Acts 2023, 88th Leg., R.S., Ch. 282 (S.B. [1213](#)), Sec. 2, eff. May 29, 2023.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. [2075](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.033. PRESIDING OFFICER. The presiding officer of the commission, with the approval of the commission, shall appoint one of the advisory board members to serve as presiding officer of the advisory board for a term of one year.

Added by Acts 2023, 88th Leg., R.S., Ch. 282 (S.B. [1213](#)), Sec. 2, eff. May 29, 2023.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. [1255](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.034. DUTIES. The advisory board may advise the commission and department on:

(1) technical matters relevant to the administration of this chapter;

(2) standards or performance and work practices for mold assessment or remediation;

(3) qualifications for the issuance or renewal of a license, including any training or continuing education; and

(4) other issues affecting mold assessment and remediation.

Added by Acts 2023, 88th Leg., R.S., Ch. 282 (S.B. [1213](#)), Sec. 2, eff. May 29, 2023.

SUBCHAPTER B. POWERS AND DUTIES

Sec. 1958.051. GENERAL POWERS AND DUTIES. The executive director shall administer and enforce this chapter to protect the public from the adverse health effects of mold.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.279, eff. September 1, 2017.

Sec. 1958.052. PUBLIC EDUCATION PROGRAM. (a) The department shall conduct a statewide education and outreach program regarding the importance of, and ways to improve, air quality in buildings, including the importance of, and the ways to recognize, prevent, control, and mitigate, mold occurrence and other indoor air quality factors that adversely affect human health.

(b) The program may include:

(1) the development and distribution of information to the public concerning indoor air quality and mold;

(2) educational programs;

(3) informational or educational exhibits; and

(4) any other methods of education or communication that the department considers appropriate.

(c) The department may contract with governmental entities or other persons to provide the program.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.0531. RULES. The commission shall adopt rules as necessary to administer this chapter.

Added by Acts 2017, 85th Leg., R.S., Ch. 1105 (H.B. [4007](#)), Sec.

11.001, eff. September 1, 2017.

Sec. 1958.054. RULES REGARDING PERFORMANCE STANDARDS AND WORK PRACTICES. The commission by rule shall establish minimum performance standards and work practices for conducting a mold assessment or mold remediation in this state.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.294, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.280, eff. September 1, 2017.

Sec. 1958.056. INSPECTIONS. (a) The department shall conduct inspections as necessary to ensure compliance with this chapter.

(b) Repealed by Acts 2021, 87th Leg., R.S., Ch. 663 (H.B. [1560](#)), Sec. 1.25(26), eff. September 1, 2021.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.296, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.281, eff. September 1, 2017.

Acts 2021, 87th Leg., R.S., Ch. 663 (H.B. [1560](#)), Sec. 1.25(26), eff. September 1, 2021.

Sec. 1958.058. SAFETY STANDARDS. The commission by rule may develop and establish mold safety standards for license holders if appropriate scientific information exists regarding the effect of mold.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.297, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.282, eff. September 1, 2017.

Sec. 1958.059. CODE OF ETHICS. The commission by rule shall adopt a code of ethics for license holders that promotes the education of mold assessors and mold remediators concerning the ethical, legal, and business principles that should govern their conduct.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 5.298, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 1.283, eff. September 1, 2017.

SUBCHAPTER C. LICENSE AND REGISTRATION REQUIREMENTS

Sec. 1958.101. LICENSE REQUIRED; RULES. (a) A person may not engage in:

(1) mold assessment unless the person holds a mold assessment license; or

(2) mold remediation unless the person holds a mold remediation license.

(b) The commission shall adopt rules regarding:

(1) the scope of mold-related work for which a license is required, including the supervision of employees or other persons by license holders; and

(2) renewal requirements for a license issued under this chapter.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 5.299, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 1.284, eff. September 1, 2017.

Sec. 1958.1011. TERM OF LICENSE. A license issued under this chapter is valid for two years.

Added by Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 5.300,

eff. April 2, 2015.

The following section was amended by the 89th Legislature. Pending publication of the current statutes, see S.B. [1255](#), 89th Legislature, Regular Session, for amendments affecting the following section.

Sec. 1958.102. EXEMPTIONS. (a) An owner or tenant, or a managing agent or employee of an owner or tenant, is not required to be licensed under this chapter to perform mold assessment or mold remediation on property owned or leased by the owner or tenant. This exemption does not apply:

(1) if the managing agent or employee engages in the business of performing mold assessment or mold remediation for the public;

(2) if the mold remediation is performed in an area in which the mold contamination affects a total surface area of 25 contiguous square feet or more; or

(3) to a person who is exempt under Subsection (e).

(b) An employee of a license holder is not required to be licensed under this chapter to perform mold assessment or mold remediation while supervised by the license holder, as provided by rules adopted under Section [1958.101](#).

(c) A person is not required to be licensed under this chapter to perform mold remediation in an area in which the mold contamination affects a total surface area for the project of less than 25 contiguous square feet.

(d) A person is not required to be licensed under this chapter to perform mold assessment or mold remediation in a one-family or two-family dwelling that the person constructed or improved if the person performs the mold assessment or mold remediation at the same time the person performs the construction or improvement or at the same time the person performs repair work on the construction or improvement. This exemption does not apply if the person engages in the business of performing mold assessment or mold remediation for the public.

(e) An owner, or a managing agent or employee of an owner, is not required to be licensed under this chapter to perform mold

assessment or mold remediation on a residential property owned by that person with fewer than 10 dwelling units. This exemption does not apply if the managing agent or employee engages in the business of performing mold assessment or mold remediation for the public. Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.103. REGISTRATION REQUIREMENTS FOR EMPLOYEES. The commission may adopt rules to require the registration of employees supervised by license holders.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.301, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.285, eff. September 1, 2017.

Sec. 1958.104. RULES REGARDING LICENSE APPLICATION. The commission shall adopt rules regarding a license application. The commission shall adopt rules that establish minimum requirements for a license, including:

- (1) the type of license;
- (2) the qualifications for the license, including any previous training required under Section [1958.106](#);
- (3) renewal requirements for the license; and
- (4) liability insurance requirements for the license.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.302, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.286, eff. September 1, 2017.

Acts 2021, 87th Leg., R.S., Ch. 663 (H.B. [1560](#)), Sec. 1.21, eff. September 1, 2021.

Sec. 1958.105. EXAMINATION. The department may require that an applicant for a license pass a competency examination to qualify for the license.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2005, 79th Leg., Ch. 642 (H.B. [2746](#)), Sec. 1, eff. September 1, 2005.

Acts 2017, 85th Leg., R.S., Ch. 1105 (H.B. [4007](#)), Sec. 11.002, eff. September 1, 2017.

Sec. 1958.106. TRAINING. (a) The commission shall adopt rules regarding training required under this chapter.

(b) The rules may include requirements regarding training providers, including rules establishing:

- (1) accreditation by the department;
- (2) curriculum requirements; and
- (3) qualifications.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.303, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.287, eff. September 1, 2017.

Acts 2021, 87th Leg., R.S., Ch. 663 (H.B. [1560](#)), Sec. 1.22, eff. September 1, 2021.

SUBCHAPTER D. PRACTICE BY LICENSE HOLDER

Sec. 1958.151. SCOPE OF WORK ANALYSIS. (a) A license holder who intends to perform mold assessment on a mold remediation project shall prepare a work analysis for the project. The license holder shall provide the analysis to the client before the mold remediation begins.

(b) The work analysis must specify:

- (1) the rooms or areas where the work will be performed;
- (2) the quantities of materials to be removed or cleaned at the project;
- (3) the proposed methods for each type of remediation in each type of area in the project; and

(4) the proposed clearance criteria for each type of remediation in each type of area in the project.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.152. REMEDIATION WORK PLAN. (a) A license holder who intends to perform mold remediation shall prepare a work plan providing instructions for the remediation efforts to be performed for the mold remediation project. The license holder shall provide the work plan to the client before the mold remediation begins.

(b) The license holder shall maintain a copy of the work plan at the job site where the remediation is being performed.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.153. NOTICE OF PROJECT. (a) Except as provided by Subsection (b), not later than the fifth day before the date on which a license holder starts mold remediation at a property, the license holder shall notify the department in a manner prescribed by the department about the project.

(b) In an emergency, notice to the department under Subsection (a) must be made not later than the next business day after the license holder identifies the emergency. For purposes of this subsection, an emergency exists if a delay in mold remediation services in response to a water damage occurrence would increase mold contamination.

(c) The commission shall adopt rules to implement this section, including rules describing the information that must be provided in the notice.

(d) The department shall develop a mechanism by which a license holder may notify the department of an emergency as required by Subsection (b).

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. [219](#)), Sec. 5.305, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. [202](#)), Sec. 1.288, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 1105 (H.B. [4007](#)), Sec.

11.003, eff. September 1, 2017.

Sec. 1958.154. CERTIFICATE OF MOLD REMEDIATION; DUTY OF PROPERTY OWNER. (a) Not later than the 10th day after the date on which a license holder completes mold remediation at a property, the license holder shall provide a certificate of mold remediation to the property owner. The certificate must include a statement by a mold assessment license holder that, based on visual, procedural, and analytical evaluation, the mold contamination identified for the project has been remediated as outlined in the mold management plan or remediation protocol. If the mold assessment license holder determines that the underlying cause of the mold has been remediated so that it is reasonably certain that the mold will not return from that remediated cause, the mold assessment license holder shall indicate on the certificate that the underlying cause of the mold has been remediated.

(b) If a property owner sells property, the property owner shall provide to the buyer a copy of each certificate issued for the property under this section during the five years preceding the date the property owner sells the property.

(c) The commission shall adopt rules to implement this section, other than rules described by Subsection (d).

(d) The commissioner of insurance shall adopt rules describing the information that must be provided in the certificate of mold remediation. In adopting the rules, the commissioner shall design the certificate as necessary to comply with any requirements imposed under Subchapter G, Chapter 544, Insurance Code.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2005, 79th Leg., Ch. 149 (H.B. 1328), Sec. 2, eff. May 24, 2005.

Acts 2005, 79th Leg., Ch. 728 (H.B. 2018), Sec. 11.153, eff. September 1, 2005.

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 5.306, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 1.289, eff. September 1, 2017.

Sec. 1958.155. CONFLICT OF INTEREST; DISCLOSURE REQUIRED.

(a) A license holder may not perform both mold assessment and mold remediation on the same project.

(b) A person may not own an interest in both the entity that performs assessment services and an entity that performs remediation services on the same project.

(c) A license holder who is not an individual shall disclose to the department the name, address, and occupation of each person that has an ownership interest in the license holder. The license holder shall report any changes in ownership to the department. The commission shall adopt rules to implement this section, including rules regarding the form of the disclosure and the time required to make disclosures or to report a change in ownership.

(d) This section does not apply to a license holder employed by a school district working on a project for that school district.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2005, 79th Leg., Ch. 126 (H.B. 74), Sec. 1, eff. May 24, 2005.

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 5.307, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 1.290, eff. September 1, 2017.

Sec. 1958.156. RECORD REQUIREMENTS; DUTIES OF MOLD

REMIEDIATORS. (a) A mold remediator shall maintain a record regarding each mold remediation performed for at least three years after the date of completion of the mold remediation on a property.

(b) The mold remediator shall make the record available for inspection by the department or any law enforcement entity.

(c) The record must contain:

(1) photographs of the scene of the mold remediation taken before and after the remediation;

(2) the written contract between the mold remediator or any other party regarding the mold remediation;

(3) all invoices issued regarding the mold remediation; and

(4) any other material required by the department.

(d) Not later than the 10th day after the date of completion of a mold remediation, the mold remediator license holder shall provide the property owner with copies of all photographs required by this section.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 1105 (H.B. 4007), Sec. 11.004, eff. September 1, 2017.

Sec. 1958.157. OFFICE LOCATION. A license holder shall maintain an office in this state.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.158. SERVICE OF PROCESS ON LICENSE HOLDER. The department may serve any notice that law requires the department to serve on a license holder by:

(1) personal service on the license holder;

(2) certified mail, return receipt requested, to the license holder at the last known address the license holder provided to the department; or

(3) certified electronic mail to the license holder at the last known electronic mail address the license holder provided to the department.

Added by Acts 2017, 85th Leg., R.S., Ch. 1105 (H.B. 4007), Sec. 11.005, eff. September 1, 2017.

SUBCHAPTER G. OTHER PENALTIES; ENFORCEMENT PROVISIONS; EXEMPTIONS FROM CIVIL LIABILITY

Sec. 1958.303. EXEMPTION FROM CIVIL LIABILITY FOR CERTAIN PROPERTY OWNERS. A property owner is not liable for damages related to mold remediation on a property if:

(1) a certificate of mold remediation has been issued under this chapter for that property; and

(2) the damages accrued on or before the date of the issuance of the certificate.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.

Sec. 1958.304. EXEMPTION FROM CIVIL LIABILITY FOR CERTAIN GOVERNMENTAL ENTITIES. A person is not liable in a civil lawsuit for damages related to a decision to allow occupancy of a property after mold remediation has been performed on the property if:

(1) a certificate of mold remediation has been issued under this chapter for the property;

(2) the property is owned or occupied by a governmental entity, including a school; and

(3) the decision was made by the owner, occupier, or any person authorized by the owner or occupier to make the decision.

Added by Acts 2003, 78th Leg., ch. 205, Sec. 1, eff. Sept. 1, 2003.